

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**COMPLAINANTS SAMSUNG ELECTRONICS AMERICA, INC. AND SAMSUNG
ELECTRONICS CO., LTD.'S CLAIM CONSTRUCTION HEARING
DEMONSTRATIVES**

DATED: June 2, 2026

Respectfully submitted,

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UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.

In the Matter of
CERTAIN SMART WEARABLE DEVICES, SYSTEMS,
AND COMPONENTS THEREOF

Investigation No. 337-TA-1478

June 3, 2026 *Markman* Hearing

SAMSUNG

O'Melveny

Patents At Issue

'675 Patent

(12) United States Patent

Chung et al.

(19) Patent No. US 10,231,675 B2

(45) Date of Patent: Mar. 19, 2019

(54) METHOD FOR DETECTING BIOMETRIC INFORMATION AND ELECTRONIC DEVICE USING SAME

(71) Applicant: Samsung Electronics Co., Ltd.
Suwon-si, Gyeonggi-do (KR)

(72) Inventors: Jiyoung Han, Suwon-si (KR);
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Lee, Suwon-si (KR); Hongik Kim,
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Seoul (KR); Jae-Woong Chun,
Suwon-si (KR); Won Suk Choi, Seoul
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(73) Assignee: Samsung Electronics Co., Ltd.
Suwon-si (KR)

(*) Notice: Subject to any disclaimer, the term of this patent is extended or adjusted under 35 U.S.C. 154(b) by 217 days.

(21) Appl. No.: 15/173,099

(22) Filed: Jun. 3, 2016

(41) Publication Date

US 2017/004245 A1 Feb. 16, 2017

(51) Foreign Application Priority Data

Aug. 12, 2015 (KR) _____ 10-2015-0813972

(52) Int. Cl.
H01B 5/04 (2006.01), *H01B 5/00*
(2006.01)
(Continued)

(53) U.S. Cl.
CPC _____ *A61B 5/285* (2013.01), *A61B 5/005*
(2013.01), *A61B 5/002* (2013.01);
(Continued)

(58) Field of Classification Search

USPC _____ 600/300, 301
See application file for complete search history.

(56) References Cited

U.S. PATENT DOCUMENTS
4,129,125 A 12/1978 Lester et al.
5,342,766 K2 12/1995 Kamata
(Continued)

FOREIGN PATENT DOCUMENTS

JP _____ 281300 A2 3/2015
_____ 2990973 J1 3/2016
(Continued)

Primary Examiner—Nicole F Johnson
(74) Attorney, Agent, or Firm—Jefferson IP Law, LLP

(57) ABSTRACT

A device for detecting biometric information is provided. The device includes a housing, a detector coupled to a part of the housing and detachably attached to a part of a user's body, at least one first sensor configured to detect the motion of the electronic device, at least one second sensor configured to detect a change in the user's body, a memory, and a processor electrically connected to the at least one first sensor, the at least one second sensor, and the memory. The memory may store instructions that configure the processor, when being executed, to determine whether the electronic device is worn on a part of the user's body using the at least one first sensor; acquire information on the motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and immediately after a first period of time started upon the time when the electronic device is worn on a part of the user's body; and activate the at least one second sensor based on at least a part of the information on the motion.

20 Claims, 23 Drawing Sheets

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graph TD
    ED[ELECTRONIC DEVICE] --> AP[APPLICATION PROGRAMMING INTERFACE UNIT]
    ED --> R[RECEIVER]
    ED --> T[TRANSMITTER]
    ED --> N[NETWORK]
    ED --> S[SERVER]
    ED --> BS[BIO-METRIC SENSITIVE UNIT]
    BS --> ED
    BS --> BSENS[BIO-METRIC SENSOR]
    BSENS --> BS
    BS --> BD[BIO-METRIC DEVICE]
    BD --> BS
    
```

Ex. 1

'359 Patent

US 10,642,359 B2

US1010642359B2

(12) **United States Patent**
Choi et al.

(16) **Patent No.:** US 10,642,359 B2
(45) **Date of Patent:** May 5, 2020

(54) **WEARABLE BIOMEDICAL INTERFACE AND METHOD THEREOF**

(71) Applicant: **Samsung Electronics Co., Ltd.,**
Suwon-si (KR)

(72) Inventors: **Chang Mok Choi, Suwon-si (KR);**
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(73) Assignee: **Samsung Electronics Co., Ltd.,**
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(*) Notice: Subject to any disclaimer, the term of this patent is extended or adjusted under 35 U.S.C. 154(b) by 0 days.

(21) Appl. No.: 16/267,572

(22) Filed: Feb. 5, 2019

(65) **Foreign Publication Data**

US 2019/011280 A1 Jan. 6, 2019

Related U.S. Application Data

(63) Continuation of application No. 14/913,085, filed as application No. PCT/KR2014/004073 on May 8, 2014, now the No. 16,241,574.

(Continued)

Foreign Application Priority Data

Aug. 20, 2013 (KR) 2013-0098476

(51) **Int. Cl.**
G06F 1/18
G06F 1/1818
(2006.01)
(2013.01)

(Continued)

(52) **U.S. Cl.**
604/515 (2013.01); **461B 5/012**
(2013.01); **461B 5/222** (2013.01); **461B**
5/689 (2013.01); **461B**

(Continued)

(58) **Field of Classification Search**

CPC G06F 1/1818
See application file for complete search history.

(56) **References Cited**

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(Continued)

OTHER PUBLICATIONS

International Search Report dated Apr. 7, 2014 in connection with International Application No. PCT/KR2014/004073 (2 pages including 2 pages in Korean).
(Continued)

Primary Examiner—Guangbo Luo
(74) *Attorney, Agent, or Firm*—NSIP Law

(57) **ABSTRACT**

A wearable biological interface, an apparatus for operating a control device, and an operation method of a wearable biological interface are provided. A wearable biological interface may include a motion sensor configured to obtain a first signal based on a motion of a target, a biological sensor disposed on the target and configured to obtain a second signal from the target, and a determination controller configured to determine a validity of the second signal based on the first signal.

34 Claims, 5 Drawing Sheets

The diagram illustrates a wearable biological interface system. A hand is shown with a sensor (110) on the palm. The sensor is connected to a determination controller (120) via a transmission unit (140). The determination controller is also connected to a motion sensor (110) and a biological sensor (120). The system is labeled with reference numerals 100, 110, 120, and 140.

Ex. 2

'677 Patent

U501094577B2

(12) **United States Patent**
Chung et al.

(10) Patent No.: U.S. 9,456,777 B2
(45) Date of Patent: *Mar. 16, 2021

(54) **METHOD FOR DETECTING BIOMETRIC INFORMATION AND ELECTRONIC DEVICE USING SAME**

(71) Applicant: Samsung Electronics Co., Ltd.,
Suwon-si (KR)

(52) U.S. CL.
726 * A61B 5/725 (2013.01); A61B 5/026
(2013.01); A61B 5/002 (2013.01);
(Continued)

(58) Field of Classification Search
726S * 4007/00; 4007/00; 301
See application file for complete search history.

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Sungho Park, Wonju-si, Choi, Seoul (KR)

(56) References Cited
U.S. PATENT DOCUMENTS
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5,942,596 B2 7/2001 Kamins
(Continued)

(73) Assignee: Samsung Electronics Co., Ltd.,
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FOREIGN PATENT DOCUMENTS

JP 201001 A3 3/2015

NO CONS

(65) Prior Publication Data

US 2019/0150054 A1 May 23, 2019

Related U.S. Application Data

(63) Continuation of application Ser. No. 15/719,019, filed on Jul. 3, 2018, now Ter. No. 10,231,675.

(60) Foreign Application Priority Data

Aug. 12, 2015 (KR) 10-2015-013702

Int. Cl.
A61B 5/00
A61B 5/0265
(2006.01)
(2008.01)
(Continued)

(75) ABSTRACT

A wearable electronic device for detecting biometric information is provided. The device includes a motion sensor, one or more optical sensors including a light emitting unit and a light receiving unit, and at least one processor configured to obtain a first optical signal corresponding to the wearable electronic device, prior to a biological signal being obtained, emit light using the light emitting unit based on a determination that the first optical signal satisfies a specified condition, observe the biological signal corresponding to a user using the light receiving unit based on reflected light which the light is reflected on the user, obtain, using the motion sensor, a second motion signal corresponding to the user.
(Continued)

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graph TD
    subgraph "ELECTRONIC DEVICE"
        P[PROCESSOR]
        M[MEMORY]
        D[DISPLAY]
    end
    P <--> M
    P --> D
    
    S["WIRED/WIRELESS COMMUNICATIONS"]
    
    subgraph "SERVER"
        AP["APPLICATION PROGRAM<br/>(APP) PROVIDER"]
        SD["SERVER DATA"]
    end
    AP --> SD
    
    N[NETWORK]
    
    MT[MOBILE TERMINAL]
    SNT[SENSOR]
    
    MT --> |USER INFORMATION| SR[SERVER]
    SNT --> |BIOLOGICAL SIGNAL| SR
    
    P <--> |APP DATA| AP
    P <--> |DATA| SD
    P <--> |REQUEST| N
    P <--> |RESPONSE| N
    P <--> |CONTROL SIGNAL| MT
    P <--> |CONTROL SIGNAL| SNT
  
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'789 Patent

US010978789B2

(12) **United States Patent**
Cho et al.

(10) **Patent No.:** **US 10,978,789 B2**
(45) **Date of Patent:** **Apr. 13, 2021**

(54) **ELECTRONIC DEVICE INCLUDING
HIGH-FREQUENCY TRANSMISSION
CIRCUIT**

(58) **Field of Classification Search**
1501 363/796
See application file for complete search history.

(71) **Applicant:** **Samsung Electronics Co., Ltd.,
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(56) **References Cited**
U.S. PATENT DOCUMENTS

(72) **Inventors:** **Han-Min Cho, Gyeonggi-do (KR);**
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Hui-Sung Kwak, Gyeonggi-do (KR);
Byoung-Bi Son, Gyeonggi-do (KR);
Sung-Chul Park, Seoul (KR)

4,848,511 A 1/1989 Schuler et al.
5,770,680 B2 9/2019 Pa et al.
(*)

FOREIGN PATENT DOCUMENTS

(73) **Assignee:** **Samsung Electronics Co., Ltd.**

EP 2 180 789 4/2001
KR 10201901 5/2013
(Continued)

ABSTRACT

Related U.S. Application Data

(03) Continuation of application No. 15/621,687, filed on Jun. 13, 2017, now Pat. No. 10,127,568.

(31) **Int. Cl.**
H01S 5/00
H01Q 1/24
(Continued)

(52) **U.S. Cl.**
CPC **H01Q 1/24** (2013.01); **H01Q 1/88**
(2013.01); **H01Q 5/35** (2013.01); **H01Q 2/20**
(2013.01).

(Continued)

ABSTRACT

Disclosed is an electronic device including a housing, a printed circuit board (PCB) in the housing, wherein the PCB includes a plurality of layers with one or more conductive and insulation layers, a first electrical component formed as at least a part of or in the housing, a second electrical component above or near the PCB in the housing, wherein the first and second electrical components are separated, and at least one electrical path extending from the first electrical component to the second electrical component, wherein at least a portion of the electrical path runs on or inside the PCB, wherein the PCB includes a region including a part of conductive vias, wherein each of the vias extends through at least a part of the plurality of layers in the housing at least one

(Continued)

NO CONSTRUCTION

(57)		(57)
ABSTRACT		ABSTRACT

Disputed Claim Terms

“first period of time” and “second period of time”

'675 Patent, Claim 15

“third period of time”

'675 Patent, Claim 13

“the biometric signal”

'359 Patent, Claim 14

“first period of time” and “second period of time”
’675 Patent, Claim 13

The Invention of the '675 Patent

The Problem Addressed

Electronic devices may operate biometric sensors (e.g., heart rate sensors) in order to measure biometric information (e.g., a heart rate). The operation of the biometric sensors **may consume the battery power** of the electronic devices. Accordingly, the electronic devices may have difficulty in measuring biometric information for a long period of time (e.g., while users wear the electronic devices).

In another example, when electronic devices measure users' biometric information, the measurement of biometric information **is impossible, or the accuracy of the measured biometric information may be deteriorated according to the motion** of the electronic devices.

Ex. 1 at 1:45-56

The Solution

Aspects of the present disclosure are to address at least the above-mentioned problems and/or disadvantages and to provide at least the advantages described below. Accordingly, an aspect of the present disclosure is to provide an electronic device and a method that can **selectively operate a biometric sensor** based on a selected (or specified) condition.

* * *

Another aspect of the present disclosure is to provide an electronic device and a method that can **measure biometric information based on the motion** of the electronic device.

Ex. 1 at 1:57-2:3

The Invention of the '675 Patent

'675 Patent, Claim 13

13. A method comprising:

determining whether an electronic device is **worn** on a part of a user's body using at least one first sensor of the electronic device;

acquiring first information on a **motion** of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body;

activating at least one **second sensor** based on at least a part of the first information on the motion of the electronic device;

detecting a **biometric information** of the user using the activated at least one second sensor;

during detecting the biometric information, acquiring second information on a **motion** of the electronic device using at least the part of the at least one first sensor; and

in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, **inactivating** the at least one **second sensor**.

Disputed Claim Construction

'675 Patent, Claim 13

13. A method comprising:

determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;

acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for ***a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user's body***;

activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;

detecting a biometric information of the user using the activated at least one second sensor;

during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor; and

in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.

Disputed Claim Construction

Term	Samsung (Complainants)	Oura (Respondents)
“acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for <i>a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user’s body</i>” '675 Patent, Claim 13	Within this phrase, “second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user’s body” means: <i>“second period of time which begins:</i> <i>(i) before the first period of time has ended when it is determined that the electronic device is worn, or</i> <i>(ii) immediately after the first period of time has ended when it is determined that the electronic device is worn”</i>	Indefinite

Dispute: Whether the intrinsic evidence provides objective boundaries for the disputed limitation; Oura proposes no alternative construction.

The Law Requires Only “Reasonable Certainty”



A claim is indefinite if, when “read in light of the specification” and “prosecution history,” it “fail[s] to inform, with ***reasonable certainty***, those skilled in the art about the scope of the invention.”

Nautilus, Inc. v. Biosig Instruments, Inc., 572 U.S. 898, 901 (2014).

A “claim is ***not*** indefinite” “[i]f a person of ordinary skill in the art, with the aid of the specification, would understand what is claimed.”

Biosig Instruments, Inc. v. Nautilus, Inc., 783 F.3d 1374, 1381 (Fed. Cir. 2015).

Words of Degree Require Only Objective Boundaries



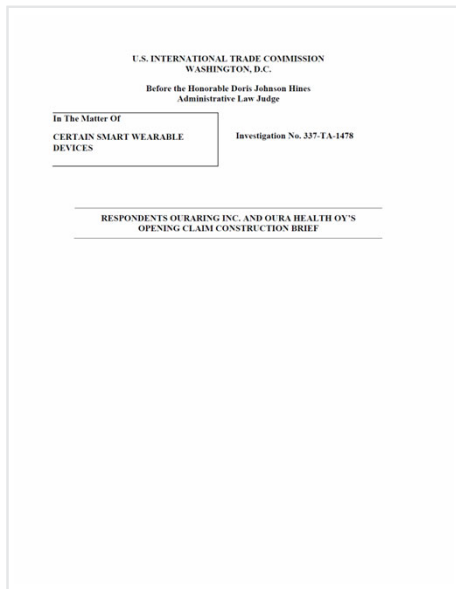
Words of degree are *not* “***inherently indefinite***”; instead, “the court must determine whether the patent provides ‘***some standard for measuring*** that degree.’”

Biosig Instruments, Inc. v. Nautilus, Inc., 783 F.3d 1374, 1378 (Fed. Cir. 2015) (internal quotations omitted).

For terms of degree, the intrinsic evidence “must provide ***objective boundaries*** for those of skill in the art” in the context of the invention.

Guangdong Alison Hi-Tech Co. v. Int’l Trade Comm’n, 936 F.3d 1353, 1360 (Fed. Cir. 2019).

Oura's Arguments



Oura's Opening Brief at 1

- **“first period of time” and “second period of time”** lack objective boundaries
- **“shortly before and/or immediately after”** further compound the issue by requiring a temporal comparison between two periods of time that are themselves undefined

Claims Provide Objective Bounds For First/Second Periods

first period of time – determine whether an electronic device is worn

second period of time – determine whether to activate/deactivate second sensor

'675 Patent, Claim 13

13. A method comprising:

determining whether an *electronic device is worn* on a part of a user's body using at least one *first sensor* of the electronic device;

acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after *a first period of time* when it is determined that the electronic device is worn on a part of the user's body;

activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;

detecting a biometric information of the user using the activated at least one second sensor; during detecting the biometric information, acquiring second information on a motion of the electronic device using at least the part of the at least one first sensor; and

in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, inactivating the at least one second sensor.

Specification Confirms Objective Bounds

first period of time – determine whether an electronic device is worn

second period of time – determine whether to activate/deactivate second sensor

[D]etermine whether the electronic device is worn on (or close to) a part of the user's body using the at least one first sensor; acquire information on the motion of the electronic device using at least a part of the at least one first sensor for a second period of time shortly before and/or immediately after *a first period of time* selected (or specified) passes from the time when the electronic device is worn on (or close to) a part of the user's body; and activate (operate or trigger) the at least one second sensor based on at least a part of the information on the motion.

Ex. 1 at 20:63-21:8

Specification Describes Operation During First Period

first period of time – determine whether an electronic device is worn

second period of time – determine whether to activate/deactivate second sensor

For example, when the ***motion*** of the electronic device ***is detected*** through, for example, an acceleration sensor, a terrestrial magnetism sensor, or a gyro sensor, the device state determination module 502 may determine that the electronic ***device has been worn*** on a user's body. Furthermore, when the ***motion*** of the electronic device is ***not detected*** through, for example, an acceleration sensor, a terrestrial magnetism sensor, or a gyro sensor, the device state determination module 502 may determine that the electronic device has ***not been worn*** on the user's body.

Ex. 1 at 16:48-57

Claims Provide Objective Bounds For First/Second Periods

first period of time – determine whether an electronic device is worn

second period of time – determine whether to activate/deactivate second sensor

'675 Patent, Claim 13

13. A method comprising:

determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;

acquiring **first information on a motion** of the electronic device using at least a part of the at least one first sensor for **a second period of time** shortly before and/or immediately after **a first period of time** when it is determined that the electronic device is worn on a part of the user's body;

activating at least one second sensor based on at least a part of the first information on the motion of the electronic device;

detecting a biometric information of the user using the activated at least one second sensor; during detecting the biometric information, acquiring **second information on a motion** of the electronic device using at least the part of the at least one first sensor; and

in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion, **inactivating the at least one second sensor**.

Specification Confirms Objective Bounds

first period of time – determine whether an electronic device is worn

second period of time – determine whether to activate/deactivate second sensor

[D]etermine whether the electronic device is worn on (or close to) a part of the user's body using the at least one first sensor; acquire **information on the motion** of the electronic device using at least a part of the at least one first sensor for **a second period of time** shortly before and/or immediately after a first period of time selected (or specified) passes from the time when the electronic device is worn on (or close to) a part of the user's body; **and activate (operate or trigger) the at least one second sensor** based on at least a part of the information on the motion.

Ex. 1 at 20:63-21:8

Specification Describes Operation During Second Period

first period of time – determine whether an electronic device is worn

second period of time – determine whether to activate/deactivate second sensor

For example, the electronic device (e.g., the processor 500) may ***operate at least one sensor (e.g., biometric sensor)*** for measuring biometric information when the additionally measured ***motion*** satisfies the selected (or specified) reference.

Ex. 1 at 20:25-29

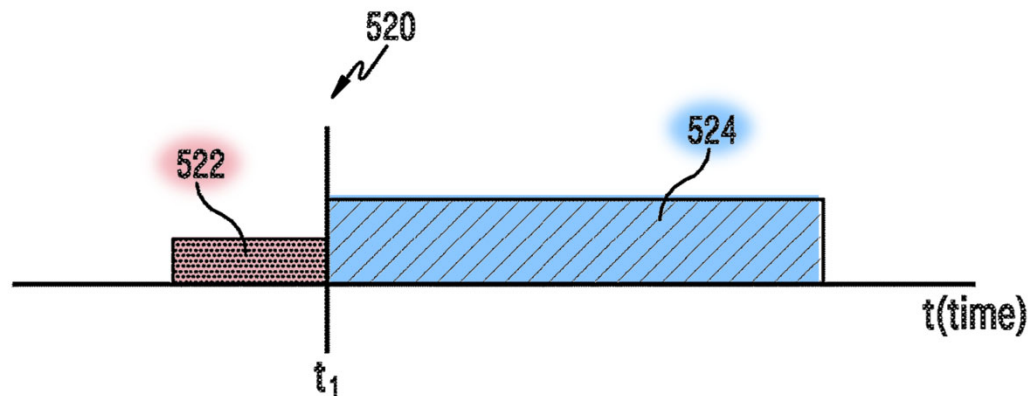
Oura Is Wrong: First/Second Periods Need Not Be Fixed

According to various embodiments, the electronic device (e.g., the processor 500) **may change the time 524** during which the **second timer** operates.

....

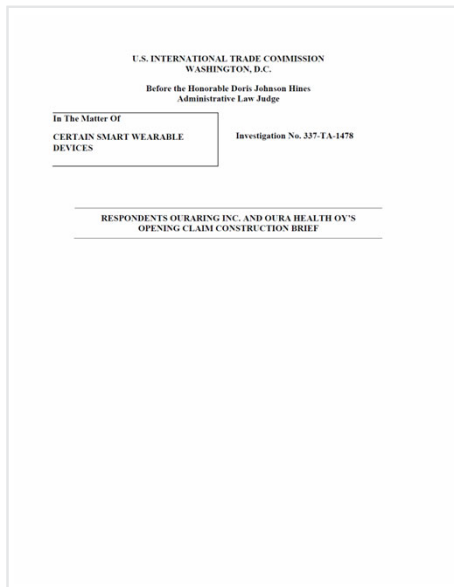
According to various embodiments, the instructions may be set to configure the processor to: acquire data from at least one of the at least one first sensor and the at least one second sensor; **and change the first period of time** and/or the **second period of time** and/or the **third period of time** based on at least a part of the acquired data.

Ex. 1 at 20:30-53, 22:5-10



Ex. 1 at Fig. 5B

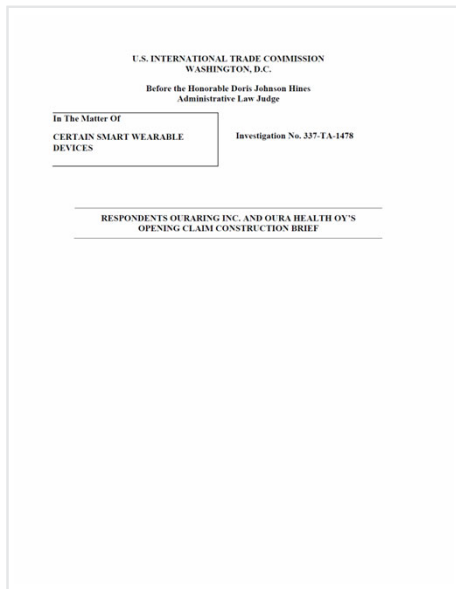
Oura's Arguments



Oura's Opening Brief at 1

- **“first period of time” and “second period of time”** lack objective boundaries
- **“shortly before and/or immediately after”** further compound the issue by requiring a temporal comparison between two periods of time that are themselves undefined

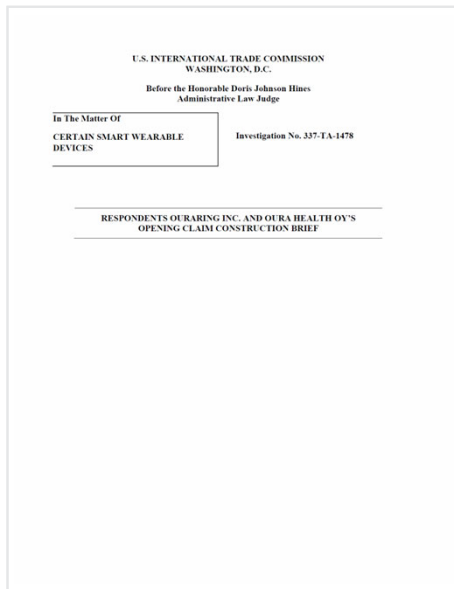
Oura's Arguments



Oura's Opening Brief at 1

- **“first period of time” and “second period of time”** lack objective boundaries
- POSITA would understand:
 - **first period of time:** time during which motion measured by a first sensor is used to determine whether the electronic device is worn.
 - **second period of time:** time during which motion measured by the first sensor is used to determine whether to activate or inactivate the at least one second sensor (e.g. a biological sensor)

Oura's Arguments



Oura's Opening Brief at 1

- “first period of time” and “second period of time” lack objective boundaries
- **“shortly before and/or immediately after”** further compound the issue by requiring a temporal comparison between two periods of time that are themselves undefined

Samsung's Construction Includes Objective Bounds

Samsung (Complainants)

Within this phrase, “second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user’s body” means:

“second period of time which begins:

- (i) before the first period of time has ended when it is determined that the electronic device is worn, [*“shortly before”*] or
- (ii) immediately after the first period of time has ended when it is determined that the electronic device is worn” [*“immediately after”*]

Claims: Second Period Starts After Wear Detection (After First Period Starts)

'675 Patent, Claim 13

13. A method comprising:

determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device;

acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for ***a second period of time*** shortly before and/or immediately after a first period of time ***when it is determined that the electronic device is worn on a part of the user's body***;

activating at least one second sensor based on at least a part of the first information on the motion of the electronic device

* * *

Ex. 1 at Claim 13

Specification: Second Period Starts After Wear Detection (After First Period Starts)

[D]etermine whether the electronic device is worn on (or close to) a part of the user's body using the at least one first sensor; acquire information on the motion of the electronic device using at least a part of the at least one first sensor for **a second period of time** shortly before and/or immediately after a first period of time selected (or specified) passes **from the time when the electronic device is worn on (or close to) a part of the user's body**; and activate (operate or trigger) the at least one second sensor based on at least a part of the information on the motion.

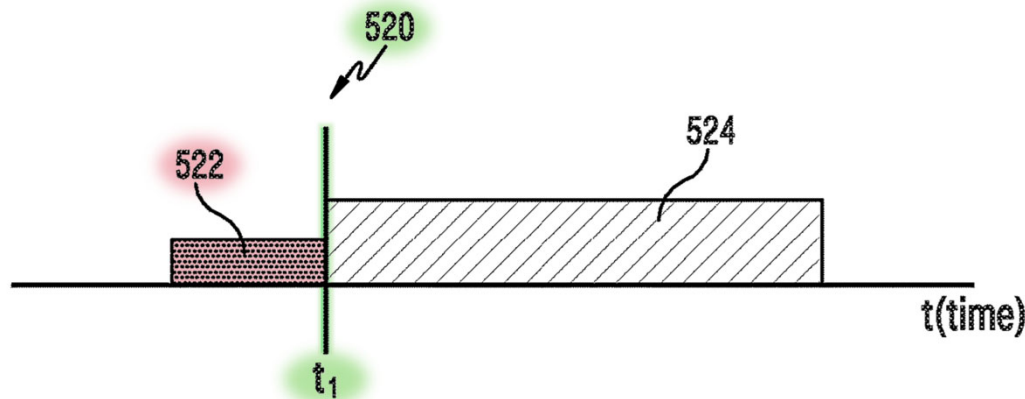
Ex. 1 at 20:63-21:8

“immediately after” – Exemplary Embodiment

immediately after – second period of time which begins: . . . (ii) immediately after the first period of time has ended when it is determined that the electronic device is worn

the electronic device (e.g., the processor 500) may measure the motion of the electronic device in at least one time interval 522 before the operation of the first timer ends (520) (e.g., for about 10 seconds before the operation of the first timer ends), and when the operation of the first timer ends, the electronic device (e.g., the processor 500) may determine whether at least a part of the measured motion satisfies a selected (or specified) reference.

Ex. 1 at 19:46-54



Ex. 1 at Fig. 5B

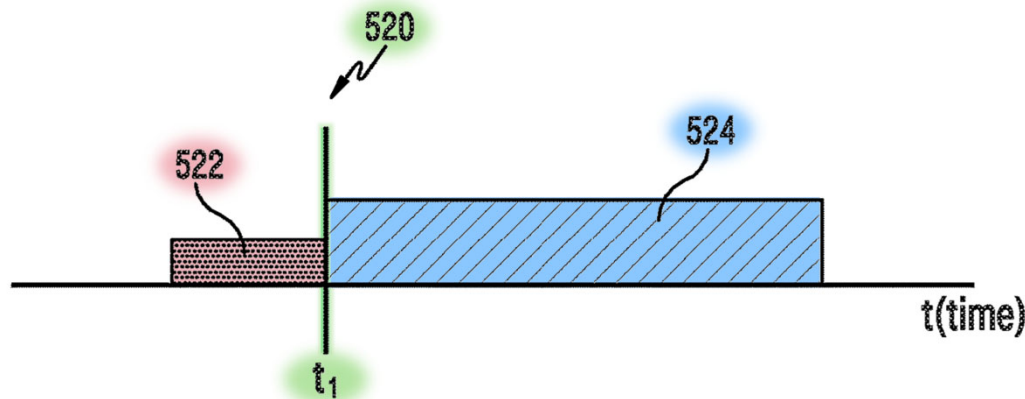
Demonstrative Exhibit

“immediately after” – Exemplary Embodiment

immediately after – second period of time which begins: . . . (ii) immediately after the first period of time has ended when it is determined that the electronic device is worn

the electronic device ... may additionally measure the ***motion*** ... for the time **524** during which the second timer operates, and may determine whether the additionally measured motion satisfies a selected (or specified) reference. For example, the electronic device ... may operate ***at least one sensor (e.g., biometric sensor)*** for measuring biometric information when the additionally measured ***motion*** satisfies the selected (or specified) reference.

Ex. 1 at 20:17-29



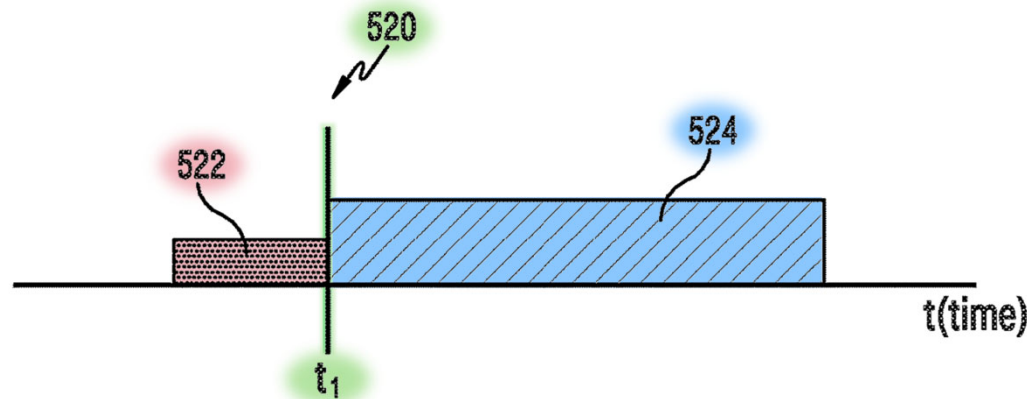
Ex. 1 at Fig. 5B

Demonstrative Exhibit

Fig. 5B Includes Activating Second Sensor Based On Motion

According to an embodiment, the memory may store instructions that configure the processor to: determine whether the electronic device **is worn** on (or close to) a part of the user's body using the at least one first sensor; acquire information on the motion of the electronic device using at least a part of the at least one first sensor for **a second period of time** shortly before and/or immediately after **a first period of time** selected (or specified) passes from the time when the electronic device is worn on (or close to) a part of the user's body; and **activate (operate or trigger) the at least one second sensor based on** at least a part of the information **on the motion**.

Ex. 1 at 20:64-21:8



Ex. 1 at Fig. 5B

Demonstrative Exhibit

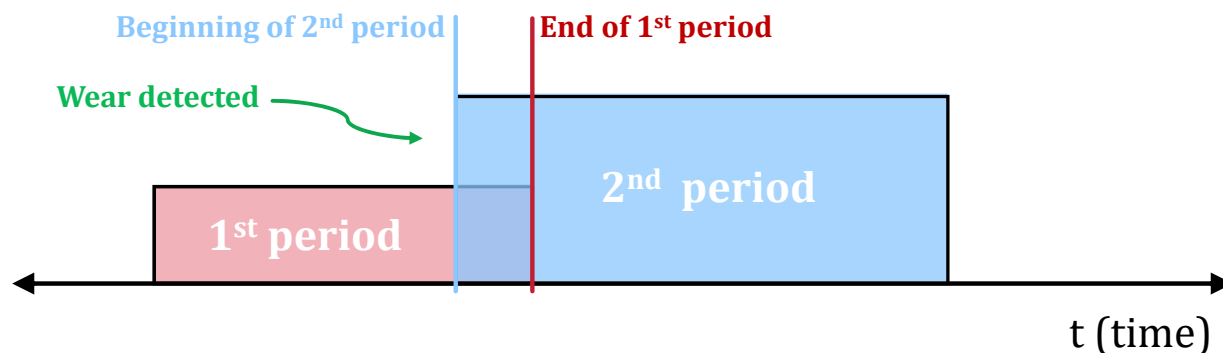
“shortly before” – Exemplary Embodiment

shortly before – second period of time which begins: (i) before the first period of time has ended when it is determined that the electronic device is worn

According to various embodiments, at least one of the second period of time and the third period of time may include the time point when the first period of time passes.

According to various embodiments, the second period of time may include the time point when the first period of time passes.

Ex. 1 at 42:18-23; see also 21:52-57



Young Decl. (Ex. 6) ¶ 34

Demonstrative Exhibit

Oura Is Wrong: Specification Describes Overlap of First And Second Periods

According to various embodiments, *the second period of time may be set to include the time point when the first period of time passes.*

Ex. 1 at 21:55-57

According to various embodiments, at least one of the *second period of time* and the third period of time *may include the time point when the first period of time passes.*

Ex. 1 at 42:18-20

Oura Is Wrong: Claims Describe Overlap of First And Second Periods

'675 Patent, Claim 1

1. An electronic device comprising:

...

acquire first information on a motion of the electronic device using at least a part of the at least one first sensor for ***a second period of time shortly before and/or immediately after a first period of time, when the at least one processor determines that the electronic device is worn on a part of the user's body,***

Ex. 1 at 42:18-20

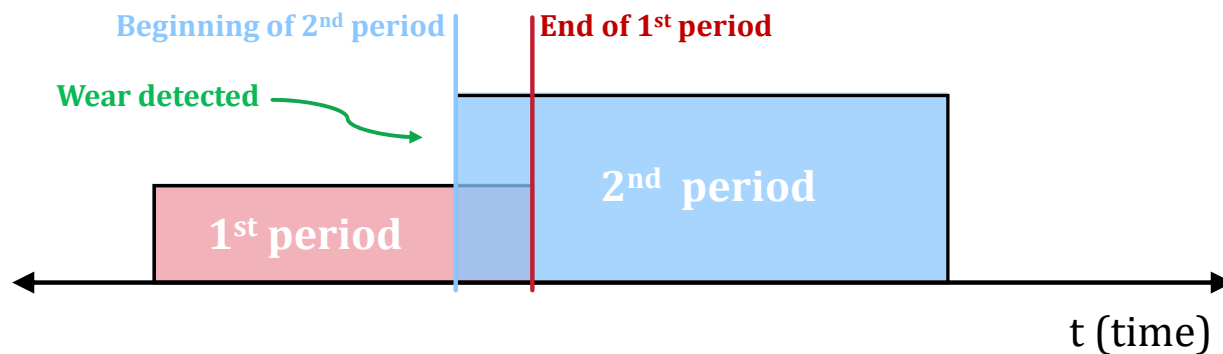
'675 Patent, Claim 7

7. The electronic device of claim 1, wherein ***the second period of time comprises a time point when the first period of time passes.***

Ex. 1 at Claim 7

Oura Is Wrong: Dr. Young Explicitly Describes And Illustrates Overlap of First and Second Periods

the specification teaches that “the second period of time may be set to include the time point when the first period of time passes.” ... In this situation, **wear detection** ... serves as the triggering event, and it **can occur before the first period ends**. When that triggering event takes place before the first period concludes, the second period begins “shortly before” the end of the first period, causing **the two periods to overlap** as illustrated below.

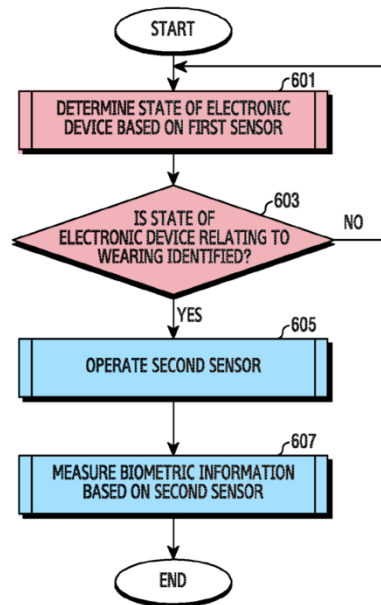


Young Decl. (Ex. 6) ¶ 34

Demonstrative Exhibit

Oura is Wrong: Embodiments of Figure 6 Include A Second Determination of Motion Before Activating Second Sensor

'359 Patent, Fig. 6



Ex. 1 at Fig. 6

When it is identified in operation 603 that the state of the electronic device relating to wearing corresponds to the selected (or specified) state (e.g., when the state of the electronic device corresponds to a wearing state), the electronic device (e.g., the processor 120 or 500) may operate at least one second sensor (e.g., the sensor module 470 or the biometric sensor 240I) in operation 605.

Ex. 1 at 23:53-59

According to an embodiment, when the state of the electronic device is determined to be a wearing state, the electronic device may identify the motion of the electronic device and may *operate at least one second sensor when the motion satisfies a selected (or specified) reference.*

Ex. 1 at 24:13-17

Wear Detection Provides Boundary



“Because the intrinsic evidence here provides ‘a general guideline and examples sufficient to enable a person of ordinary skill in the art to determine [the scope of the claims],’ . . . the claims are ***not indefinite*** even though the construction of the term ‘not interfering substantially’ defines the term ***without reference to a precise numerical measurement***.”

Enzo Biochem, Inc. v. Applera Corp., 599 F.3d 1325, 1335 (Fed. Cir. 2010).

Numeric Examples Provide Guidance But Are Not Limiting

The Federal Circuit did not limit the claims to numeric ranges, despite relying on those examples in the definiteness analysis



“the T_m is only 5 °C less than that of the unsubstituted control”

“Although the T_m ... is 15 °C lower than the poly d(A-T) control, the degree of cooperativity and the extent of hyperchromicity observed both during denaturation and renaturation were the same for the two polymers.”

Enzo Biochem, Inc. v. Applera Corp., 599 F.3d 1325, 1334-35 (Fed. Cir. 2010).

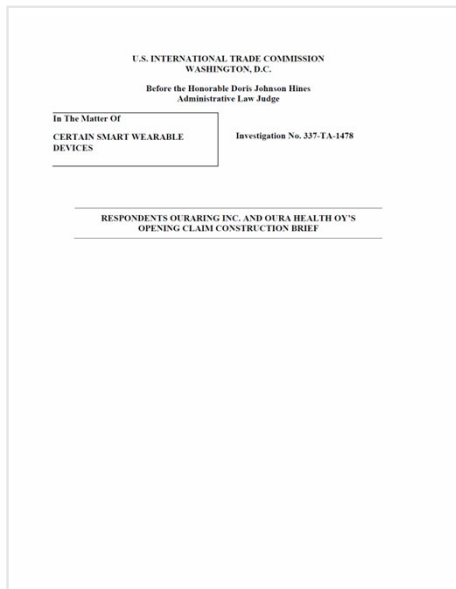
Samsung's Infringement Allegations Are Irrelevant



“A claim is construed in the light of the claim language, the other claims, the prior art, the prosecution history, and the specification, not in light of the accused device.”

SRI Intern. v. Matsushita Elec. Corp. of America,
775 F.2d 1107, 1118 (1985) (*en banc*).

Oura's Arguments



Oura's Opening Brief at 1

- “first period of time” and “second period of time” lack objective boundaries
- **“shortly before and/or immediately after”** further compound the issue by requiring a temporal comparison between two periods of time that are themselves undefined

Samsung's Construction Should Be Adopted

Term	Samsung (Complainants)
“acquiring first information on a motion of the electronic device using at least a part of the at least one first sensor for <i>a second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user’s body</i>” '675 Patent, Claim 13	Within this phrase, “second period of time shortly before and/or immediately after a first period of time when it is determined that the electronic device is worn on a part of the user’s body” means: <i>“second period of time which begins:</i> <i>(i) before the first period of time has ended when it is determined that the electronic device is worn, or</i> <i>(ii) immediately after the first period of time has ended when it is determined that the electronic device is worn”</i>

“third period of time”
'675 Patent, Claim 15

Disputed Claim Construction

Term	Samsung (Complainants)	Oura (Respondents)
“acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for <i>a third period of time</i>, which is shorter than the first period of time, immediately after the second period of time passes; and activating the at least one second sensor based on at least a part of the additional information” '675 Patent, Claim 15	Within this phrase, “third period of time” means: <i>“period of time that immediately follows the second period of time and during which additional information regarding the motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor”</i>	Indefinite

Dispute: Whether the intrinsic evidence provides objective boundaries for the disputed limitation; Oura proposes no alternative construction.

Claims Provide Objective Bounds For Third Period of Time

Samsung (Complainants)

Within this phrase, “third period of time” means: “period of time that immediately follows the second period of time and during which additional information regarding the motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor”

'675 Patent, Claim 13, 15

13. A method comprising:

* * *

in response to identifying that the ***motion*** of the electronic device included in the second information is more than a threshold motion, ***inactivating the at least one second sensor.***

15. The method of claim 13, further comprising:

acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a ***third period of time***, which is shorter than the first period of time, immediately after the second period of time passes; and
activating the at least one second sensor based on at least a part of the additional information.

Claims Provide Objective Bounds For Third Period of Time

Samsung (Complainants)

Within this phrase, “third period of time” means: “period of time that immediately follows the second period of time and during which additional information regarding the ***motion*** of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to ***activate the at least one second sensor***”

'675 Patent, Claim 13, 15

13. A method comprising:

* * *

in response to identifying that the ***motion*** of the electronic device included in the second information is more than a threshold motion, ***inactivating the at least one second sensor***.

15. The method of claim 13, further comprising:

acquiring additional information on the ***motion*** of the electronic device using at least a part of the at least one first sensor for a ***third period of time***, which is shorter than the first period of time, immediately after the second period of time passes; and

activating the at least one second sensor based on at least a part of the additional information.

Specification Confirms Objective Bounds

Samsung (Complainants)

Within this phrase, “third period of time” means: “period of time that immediately follows the second period of time and during which additional information regarding the motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor”

[A]cquire additional information on the motion of the electronic device using at least a part of the at least one first sensor for **a third period of time, which is shorter than the first period of time, immediately after the second period of time passes**; and activate (operate or trigger) the at least one second sensor based on at least a part of the additional information, without activating (operating or triggering) the second sensor when the information on the motion does not satisfy a selected (or specified) condition.

Ex. 1 at 21:42-51

Specification Confirms Objective Bounds

Samsung (Complainants)

Within this phrase, “third period of time” means: “period of time that immediately follows the second period of time and during which additional information regarding the ***motion*** of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to ***activate the at least one second sensor***”

[A]cquire additional information on the ***motion*** of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and ***activate (operate or trigger) the at least one second sensor*** based on at least a part of the additional information, without activating (operating or triggering) the second sensor when the information on the motion does not satisfy a selected (or specified) condition.

Ex. 1 at 21:42-51

Samsung's Construction Should Be Adopted

Term	Samsung (Complainants)
“acquiring additional information on the motion of the electronic device using at least a part of the at least one first sensor for a third period of time, which is shorter than the first period of time, immediately after the second period of time passes; and activating the at least one second sensor based on at least a part of the additional information” '675 Patent, Claim 15	Within this phrase, “third period of time” means: “period of time that immediately follows the second period of time and during which additional information regarding the motion of the electronic device is collected by at least a part of the at least one first sensor and used to determine whether to activate the at least one second sensor”

“the biometric signal” Term
'359 Patent, Claim 14

Disputed Claim Construction

Both parties agree there is an obvious typographical error that requires correction.

Term	Samsung (Complainants)	Oura (Respondents)
"[the] biometric signal" '359 Patent, Claim 14	Correcting "the <i>biometric</i> signal" to be "the <i>biological</i> signal" and applying the plain and ordinary meaning (i.e., <i>a signal that is associated with biological information of the user</i>).	Correcting "<i>the</i> biometric signal" to be "<i>a</i> biometric signal" and applying the plain and ordinary meaning (i.e., <i>a signal relating to the identification of an individual based on physical characteristics, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight.</i>).

Dispute: Whether the correction should align with the intrinsic record (Samsung) or introduce a wholly new concept not found anywhere in the patent (Oura).

The Intrinsic Evidence All Supports Samsung's Position

'359 Patent

1

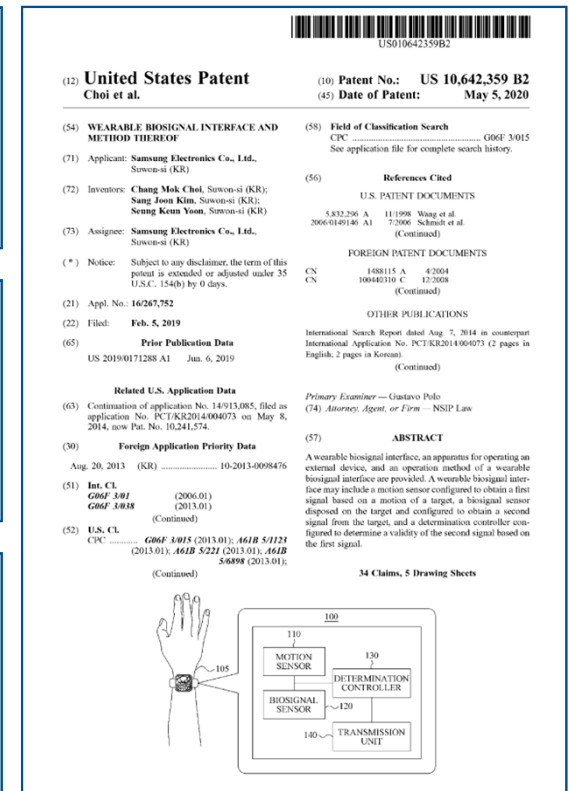
Claim 14 clearly refers back to
“a biological signal”

2

Other similar claims refer to
“a biological signal”

3

Specification only discloses
“a biological signal”



Ex. 2

The Claim Language Supports “the *biological* signal”

'359 Patent, Claim 14

14. A wearable device comprising:

a motion sensor;

a biological sensor; and

a controller configured to:

obtain a movement signal of an object external to the wearable device using the motion sensor;

obtain ***a biological signal*** of the object using ***the biological sensor***;

determine a select period, of the movement signal, that meets a specified condition;

determine, as a valid signal, at least a portion of ***the biometric signal*** that is determined to correspond to the determined select period; and

perform a specified function using the valid signal.

Ex. 2 at Claim 14

Other Claims Support “the *biological* signal”

'359 Patent, Claim 14

14. A wearable device comprising:
a motion sensor;
a biological sensor; and
a controller configured to:
 obtain a movement signal of an object external to the wearable device using the motion sensor;
 obtain **a biological signal** of the object using **the biological sensor**;
 determine a select period, of the movement signal, that meets a specified condition;
 determine, as a valid signal, at least a portion of **the biometric signal** that is determined to correspond to the determined select period; and
 perform a specified function using the valid signal.

Ex. 2 at Claim 14

'359 Patent, Claim 7

7. A wearable device comprising:
a motion sensor;
a biological sensor; and
a controller configured to:
 obtain a movement signal of an object external to the wearable device using the motion sensor;
 obtain **a biological signal** of the object using **the biological sensor**;
 identify a period, of the movement signal, the movement signal is determined to be less than a specified condition; and
 perform a specified function using a select portion of **the biological signal** corresponding to the period.

Ex. 2 at Claim 7

The Claim Language Supports “the *biological* signal”

'359 Patent, Claim 14

14. A wearable device comprising:

a motion sensor;

a biological sensor; and

a controller configured to:

obtain a movement signal of an object external to the wearable device using the motion sensor;

obtain a biological signal of the object using the biological sensor;

determine a select period, of the movement signal, that meets a specified condition;

determine, as a valid signal, at least a portion of the biometric signal that is determined to correspond to the determined select period; and

perform a specified function using the valid signal.

Ex. 2 at Claim 14

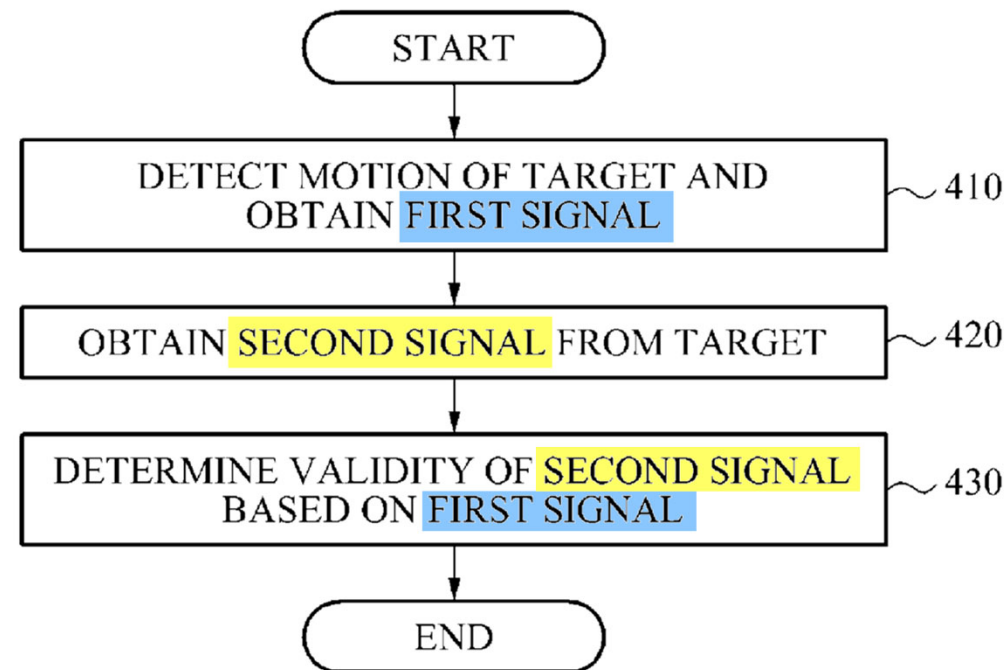
The Specification Supports “the *biological* signal”

'359 Patent, Claim 14

14. A wearable device comprising:
a motion sensor;
a biological sensor; and
a controller configured to:
 obtain a movement signal of an object external to the wearable device using the motion sensor;
 obtain a biological signal of the object using the biological sensor;
 determine a select period, of the movement signal, that meets a specified condition;
 determine, as a valid signal, at least a portion of the biometric signal that is determined to correspond to the determined select period; and
 perform a specified function using the valid signal.

Ex. 2 at Claim 14

'359 Patent, Fig. 4



Ex. 2 at Fig. 4

The Specification Supports Samsung's Construction

Term	Samsung (Complainants)	Oura (Respondents)
"[the] biometric signal" '359 Patent, Claim 14	Correcting "the <i>biometric</i> signal" to be "<i>the biological signal</i>" and applying the plain and ordinary meaning (i.e., a signal that is <i>associated with biological information</i> of the user).	Correcting "<i>the</i> biometric signal" to be "<i>a</i> biometric signal" and applying the plain and ordinary meaning (i.e., a signal relating to <i>the identification of an individual based on physical characteristics</i>, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight.).

'359 Patent Specification:

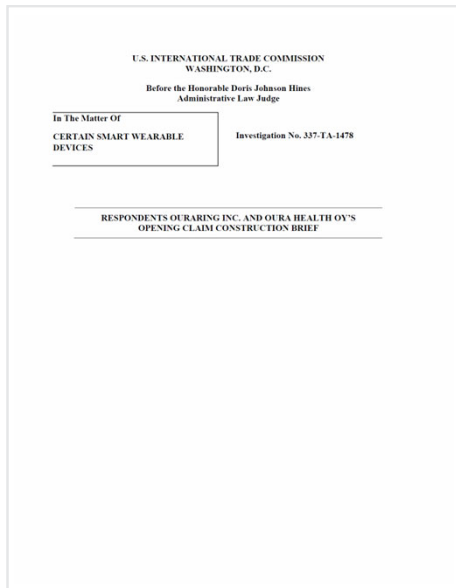
"The second signal may be *a biosignal associated with biological information* such as, *for example*, muscle contraction and muscle relaxation occurring in the target 105."

"*For example*, a biosensor may be able to detect signals generated by muscle contraction or muscle relaxation of a body part, such as a wrist or a heart."

Ex. 2 at 5:14-17, 3:56-58

Oura Cites But Does Not Apply Controlling Precedent

The error must also “be ‘evident from the face of the patent,’ and the determination ‘must be made from the point of view of one skilled in the art.’” ... Further, when “deciding whether a particular correction is appropriate, the court ‘must consider how a potential correction would impact the scope of a claim and if the inventor is entitled to the resulting claim scope ***based on the written description of the patent.***”



Oura's Opening Brief at 18

Oura's Construction Has *No* Intrinsic Support

Term	Samsung (Complainants)	Oura (Respondents)
"[the] biometric signal" '359 Patent, Claim 14	Correcting "the <i>biometric</i> signal" to be "the <i>biological</i> signal" and applying the plain and ordinary meaning (i.e., a signal that is <i>associated with biological information</i> of the user).	Correcting "<i>the</i> biometric signal" to be "<i>a</i> biometric signal" and applying the plain and ordinary meaning (i.e., a signal relating to <i>the identification of an individual based on physical characteristics</i>, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight.).

'359 Patent Specification:

- ✗ The term "*biometric*" not mentioned anywhere in the patent (except typographical error in claim 14)
- ✗ Concept of *identifying individuals* not mentioned anywhere in the patent
- ✗ No description of using *fingerprints, finger lengths, facial features, retinal patterns, voice recognition, or weight* for any purpose

Oura's Purported Intrinsic "Support" Is Just Samsung's Failure to Notice The Error

15. (Currently amended) A wearable device comprising:

a motion sensor;

a biological sensor; and

a controller configured to:

~~obtain, with respect to an object external to the wearable device, a movement signal of the~~
an object external to the wearable device using the motion sensor; ~~and~~

obtain a biological signal of the object using the biological sensor;

determine a select period, of the movement signal, that meets a specified condition;

determine, as a valid signal, at least a portion of the biometric signal that is determined to
correspond to the determined ~~corresponding to a select period that the movement is smaller than a~~
~~specified condition as a valid signal;~~ and

perform a specified function using the valid signal.

Ex. 8 at 4

Demonstrative Exhibit

Oura's Cites Only Extrinsic Support

Term	Samsung (Complainants)	Oura (Respondents)
"[the] biometric signal" '359 Patent, Claim 14	Correcting "the <i>biometric</i> signal" to be "the <i>biological</i> signal" and applying the plain and ordinary meaning (i.e., a signal that is associated with biological information of the user).	Correcting "<i>the</i> biometric signal" to be "<i>a</i> biometric signal" and applying the plain and ordinary meaning (i.e., a signal relating to <i>the identification of an individual based on physical characteristics</i>, such as fingerprints, finger lengths, facial features, retinal patterns, voice recognition, and weight.).

Oura's Extrinsic Evidence:

- Expert Declaration of Tajana S. Rosing, Ph.D.
- Select dictionary definitions

Extrinsic Evidence Cannot Overcome Intrinsic



“[A]ny definition found in or ascertained by a reading of the ***intrinsic evidence may not be contradicted by*** any meaning found in ***dictionaries*** or technical treatises.”

Dow Chem. Co. v. Sumitomo Chem. Co., 257 F.3d 1364, 1373 (Fed. Cir. 2001).

Oura's Construction Is Impermissible



A proposed correction to a claim term, such as “**changing ‘the’ to ‘a’**” “to provide an antecedent” **cannot** “alter the scope and meaning of the claims significantly from what is clear from the claim language as a whole **and is described in the specification.**”

Canatex Completion Sols., Inc. v. Wellmatics, LLC,
159 F.4th 39, 48-49 (Fed. Cir. 2025).



Canatex Completion Sols., Inc. v. Wellmatics, LLC

'122 Patent, Claim 1

1. A releasable connection for a downhole tool string, comprising

a first part comprising an external connection profile;
and

a second part comprising:

an outer housing;

a releasable engagement profile which internally engages *the connection profile of the first part* and which is configured to expand radially to release the connection profile of the first part;

a locking piston positioned within an internal cavity of the second part, the locking piston configured to move axially along the second part between a locking position that directly constrains the releasable engagement profile into engagement with *the connection profile of the first part* and a release position that permits the releasable engagement profile to expand radially to release *the connection profile of the second part*;

U.S. Patent 10,794,122 at Claim 1 (recited in part)

1. **Obvious Error** – “The phrase at issue plainly requires an antecedent (*the* connection profile of the second part’), but no ‘connection profile of the second part’ has previously been mentioned in the claim.”
2. **Claim Structurally Clear**- “the clauses defining the structure require a component of the second part (‘releasable engagement profile”) to engage with (by embracing internally) the ‘connection profile of the first part.”
3. **Specification Support** – “Nothing in the figures or their descriptions shows a ‘connection profile’ in the second part.”
4. **Only One Reasonable Correction** – “The only reasonable correction is the changing of ‘second’ to ‘first’ . . . [w]e reject defendants’ arguments that there are other reasonable corrections.”

Canatex, 159 F.3d at 47-48.

The Present Case is Analogous to *Canatex*

'359 Patent, Claim 14

14. A wearable device comprising:

a motion sensor;

a biological sensor; and

a controller configured to:

obtain a movement signal of an object external to the wearable device using the motion sensor;

obtain **a biological signal** of the object using **the biological sensor**;

determine a select period, of the movement signal, that meets a specified condition;

determine, as a valid signal, at least a portion of **the biometric signal** that is determined to correspond to the determined select period; and

perform a specified function using the valid signal.

Ex. 2 at Claim 14

- 1. Obvious Error** – The phrase at issue plainly requires an antecedent (“*the* biometric signal”), but no “biometric signal” has previously been mentioned in the claim.”
- 2. Claim Structurally Clear-** an obtained signal must be validated; the only option is the “biological signal” because the “motion signal” is used for validation.
- 3. Specification Support** – Nothing in the figures or their descriptions describes or shows a “biometric signal”
- 4. Only One Reasonable Correction** – the only reasonable correction is the changing of “biometric” to “biological.”

Even If Considered, Extrinsic Evidence Equally Supports Samsung's Construction

Expert Declaration of Dr. Darrin Young

“the *specification* explains that a biological signal is “*associated with biological information*” such as, for example, muscle contraction and muscle relaxation.”

Ex. 6 at 17

“*extrinsic definitions of ‘biometric signal’* are consistent with the ’359 Patent specification and Samsung’s construction. For example, the ’675 Patent describes “biometric information” as biological information “includ[ing] blood pressure, a heart rate, an electrocardiogram, skin moisture, saturation of peripheral oxygen, and the like.”

Ex. 6 at 18

Other Patents

“*biometric information* may include blood pressure, a heart rate, an electrocardiogram, skin moisture, saturation of peripheral oxygen, and the like.”

Ex. 1 at 1:32-35

The Evidence Overwhelmingly Supports Samsung

Both parties agree there is an obvious typographical error that requires correction.

Samsung (Complainants)

Correct “the *biometric* signal”
→ “the *biological* signal”

Intrinsic support:

- Claim 14: consistent with antecedents of “a biological sensor” and “a biological signal”
- Other similar claims recite “biological signal”
- Specification describes “biological signal” as signal that is associated with biological information of the user

Extrinsic support:

- Expert declaration
- Other patent issued to same patentee

Oura (Respondents)

Correct “*the* biometric signal”
→ “*a* biometric signal”

Intrinsic support:

Extrinsic support:

- Expert declaration
- Select dictionaries

Oura's Alternative Is Impermissibly Narrow

Oura's Alternative

“the term ‘biological signal,’ as explained by Dr. Rosing, is ‘a signal that relates to “muscle contraction or muscle relaxation of a body party, such as a wrist or a heart.””

Resp. Resp. Br. at 19

Intrinsic Evidence

“The second signal may be *a biosignal associated with biological information* such as, *for example*, muscle contraction and muscle relaxation occurring in the target 105.”

Ex. 2 at 5:14-17

“*For example*, a biosensor may be able to detect *signals generated by muscle contraction or muscle relaxation of a body part, such as a wrist or a heart.*”

Ex. 2 at 3:56-58

Samsung's Construction Should Be Adopted

Term	Samsung (Complainants)
"[the] biometric signal" '359 Patent, Claim 14	Correcting "the <i>biometric</i> signal" to be "the <i>biological</i> signal" and applying the plain and ordinary meaning (i.e., a signal that is associated with biological information of the user).

Thank You

SAMSUNG

O'Melveny

CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on June 2, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via Hand Delivery ☐ Via Overnight Delivery ☐ Via First Class Mail ☒ Via Electronic Filing (EDIS) ☐ Via Electronic Mail
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